

26STCV03698 26STCV03698

County: los-angeles

Division: Civil Law and Motion

Department: 833

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Case Number: 26STCV03698 Hearing Date: August 14, 2026 Dept: 833

Irving Adlen and Randall Avazian Case No. 26STCV03698

Hearing:

August 14, 2026

v. Location:

Stanley Mosk Courthouse

Department: 833

RG USA, et. al, Judge: Joseph

Lipner

[Tentative] Order on

Application for Writ of Attachment

INTRODUCTION

Plaintiffs Randall Avazian and Irving Adlen ("Plaintiffs") move for a writ of attachment against Defendant Graphic Visions, Inc. ("Graphic Visions") in the amount of \$402,697.36, which includes attorneys fees in the amount of \$250,000.

The Court DENIES the Writ of Attachment.

LEGAL STANDARD

"Upon the filing

of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (Code Civ. Pro. § 484.010.) “Except as otherwise provided by statute, an attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees.” (Code Civ. Pro. § 483.010.)

The court shall issue a right to attach order if the court finds all of the following:

(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.

(Code Civ. Pro. § 484.090.)

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Pro. § 481.190.) “The application shall be supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (Code Civ. Pro. § 484.030.) “In contested applications, the court must consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.” (Hobbs v. Weiss (1999) 73 Cal.App.4th 76, 80.) “The Attachment Law statutes are subject to strict construction.” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

DISCUSSION

A.

Probable Validity of Plaintiff's Claim

The application is based on Plaintiff's cause of action for breach of contract. To establish a claim for breach of contract, a plaintiff must prove: (1) the existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach of the contract; and (4) damages incurred by plaintiff as a result of the breach. (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1367.)

Plaintiffs were previously record and beneficial owners of all of the outstanding shares of stock of Graphic Visions. (Adlen Decl., ¶ 2.) On or about June 30, 2025, Plaintiffs entered a Securities Purchase Agreement pursuant to which Defendant RG USA acquired the shares of both Plaintiffs. (Adlen Decl., ¶ 3.)

On or about December 31, 2024, allegedly "in conjunction" with the SPA, both Plaintiffs entered into separate long-term promissory notes with Graphic Visions, whereby Graphic Visions borrowed an amount of \$277,500, at an interest rate of 2% per year, with interest due and payable monthly. (Adlen Decl., ¶ 4; Avazian Decl., ¶ 4.)

On or about October 15, 2025, allegedly in conjunction with the SPA, Plaintiff Adlen entered into a short-term promissory note with Graphic Visions, whereby Graphic Visions borrowed an amount of \$55,000, at an interest rate of 6% and payable on or before February 15, 2026. (Adlen Decl., ¶ 5.) On or about October 15, 2025, allegedly in conjunction with the SPA, Plaintiff Avazian entered into a short-term promissory note with Graphic Visions, whereby Graphic Visions borrowed an amount of \$77,000, at an interest rate of 6% and payable on or before February 15, 2026. (Avazian Decl., ¶ 5.)

Both Plaintiffs contend that they performed all of their obligations under both promissory notes and Graphic Visions has failed to pay any amount. (Adlen Decl., ¶ 6; Avazian Decl., ¶ 6.) According to Plaintiff Adlen, Graphic Visions owes

\$7,861.23 on the Adlen Long-Term Promissory Note and \$57,072.05 on the Adlen Short-Term Promissory Note. (Adlen Decl., ¶ 6.) According to Plaintiff Avazian, Graphic Visions owes \$7,861.23 on the long-term promissory note and \$79,902.85 on the short-term promissory note. (Avazian Decl., ¶ 6.)

This leads a total
of \$152,697.40.

Graphic Visions
argues that there are no specifics as to (1) what consideration each Plaintiff provided to Graphic Visions; (2) when and how the consideration was delivered; (3) the account or recipient that received it; (4) whether the consideration was a loan, a purchase price component, or another obligation; or (5) the corporate act authorizing Graphic Visions to incur the alleged debt.

However, none of
these specifics are required to establish a claim for breach of contract. Plaintiffs have adequately introduced evidence of a breach of contract by introducing the promissory notes and explaining that Graphic Visions has not repaid the amount due on the notes.

What is more
concerning is that there are no monthly interest calculations, which prevents a reasonable and definite standard by which the amount due can be ascertained.

For example, Adlen
claims to have entered into a short-term promissory note on October 15, 2025 whereby Graphic Visions borrowed an amount of \$55,000, at an interest rate of 6%, and payable on or before February 15, 2026. (Adlen Decl., ¶ 6.) Additionally, the note claims that Graphic Visions must pay Adlen \$5,500 a month beginning on the first day of every month, starting in November 2025, and continuing until the loan is paid off. (Adlen Decl., ¶ 6.)

Adlen claims as of
June 1, when the latest declaration was filed, there is \$57,072.05 due on the short-term promissory note. (Adlen Decl., ¶ 6.)

How is there only
\$2,072.05 in interest that has accumulated between October 15, 2025 and June 1, 2026, when the declaration was submitted to the Court? The promissory note is

unclear how frequently interest is calculated, preventing the Court from determining the amount to be attached. (Adlen Decl., Exh. 3.) Plaintiffs must produce competent evidence to show how interest is being calculated, and as of now, the evidence is unclear whether interest is being calculated monthly or yearly or by some other metric. Plaintiffs do not address this issue in their papers.

The long-term promissory note has the same issues. Plaintiffs allege that \$7,861.23 is due on two long-term promissory notes. It is unclear how the interest is calculated, preventing the Court from verifying the amount to be attached.

A writ of attachment is a harsh remedy and requires the Court to strictly construe the statute. In this case, there are too many unanswered questions to warrant the Court granting the writ.

CONCLUSION

The Court DENIES the writ of attachment.

IT IS SO ORDERED.

Dated: August 14,
2026

Joseph Lipner

Superior
Court Judge